BY ORDER OF THE COMMANDER
MINOT AIR FORCE BASE

MINOT AIR FORCE BASE
INSTRUCTION 31-140

17 OCTOBER 2019

Security

CURFEW & CHILD SUPERVISION GUIDELINES

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: This publication is available on the e-Publishing website at **www.e-Publishing.af.mil** for downloading or ordering

RELEASABILITY: There are no releasability restrictions on this publication

---

OPR: 5 SFS/S5

Certified by: 5 MSG/CC
(Col Richard E. Goodman II)

Supersedes: MINOTAFBI31-201, 15 September 2014

Pages: 5

This instruction implements AFPD 31-1, *Integrated Defense*. This instruction defines curfew rules for all family members and guests under 18 years of age on Minot Air Force Base. The purpose of this instruction is to prevent or reduce crime and incidents of misconduct. This instruction applies to all military personnel, their family members, and guests assigned or attached to Minot Air Force Base. Ensure all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual (AFMAN) 33-363, *Management of Records*, and disposed of in accordance with the Air Force Records Disposition Schedule (RDS) located at **https://www.my.af.mil/gcss-af61a/afrims/afrims/rims.cfm**. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) route the AF Form 847 from the field through the appropriate functional' s chain of command. The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3) number following the compliance statement. See AFI 33-360, *Publications and Forms Management,* for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier Waiver approval authority, or alternate, to the requestor's commander for non-tiered compliance items.

SUMMARY OF CHANGES

Corrected administrative errors and updated references.

1. Definitions.

1.1. **Juvenile.** An unmarried person whether a natural, step, adopted, ward or foster child who is a family member of the military member or spouse and has not yet reached their eighteenth (18) birthday.

1.2. **Curfew.** The time, which all juveniles must be off the streets, out of public areas, and in quarters.

1.3. **Parent/Guardian.** Any person having responsibility for or legal authority over a juvenile.

1.4. **Housing Residence.** On base family housing assigned to a sponsor including the yard, garage, and any adjacent storage facilities.

1.5. **Loiter.** To stand about without purpose.

2. Curfew Times.

2.1. Juveniles will not walk or loiter on any part of Minot Air Force Base to include the housing area between the following hours unless they are accompanied by a parent, guardian, or other responsible adult.

2.1.1. Curfew begins at 2200 on Sunday through Thursday when school will be in session the following day.

2.1.2. Curfew begins at 2400 on Friday and Saturday evenings and on other evenings when school will not be in session the following day.

2.1.3. Curfew extends to 0500 the next morning in all cases.

2.2. **Exceptions.**

2.2.1. Juveniles returning from an off-base function or who work on or off-base beyond normal curfew hours may proceed directly to their quarters. Security forces personnel may verify the individual's status by checking with either the juvenile's sponsor or employer.

2.2.2. In the case of special base-sponsored youth activities, which exceed the curfew time, the curfew is automatically extended to 30 minutes after the end of the event for juveniles attending the activity.

2.2.3. Juveniles returning to their quarters after curfew hours will not loiter or cause any disturbance and will walk to their quarters by the most direct route.

3. Curfew Violations.

3.1. Violators of the curfew will normally be transported by security forces' personnel to the law enforcement desk, where they will be temporarily detained. In such cases, the parents or legal guardian will be required to pick up the violator. If the parents or legal guardian cannot be located, security forces' personnel will take the following actions:

3.1.1. Contact the first sergeant or the commander of the sponsor, who will try to locate the parents or legal guardian.

3.1.2. If a parent or legal guardian cannot be located and the first sergeant or commander will not take custody of the child, security forces will request permission from the 5 MSG/CC or 5 MSG/CD to contact Ward County Social Services for assistance with caring for the child.

3.2. If the child appears physically injured or in an altered mental state, contact will be made with ambulance service to determine if the child requires immediate medical attention. If the child does not require additional medical assistance, follow the guidance provided above.

4. Curfew Violation Administrative Actions.

4.1. In all cases of confirmed violations, security forces' personnel will complete a blotter entry and the sponsor's first sergeant or commander will be notified.

4.2. An Incident/Complaint Report will be accomplished when an additional violation has occurred i.e., underage drinking, vandalism, fleeing from security forces, etc.

4.3. Penalties. Housing occupants will be notified of this instruction through the family housing brochure, which is issued to occupants when they accept housing. Failure to comply with this instruction could result in debarment of the violator from the base, revocation of the sponsor's privileges of residing in military family housing, or other administrative actions.

5. Child Supervision Guidelines.

5.1. North Dakota does not have a law which provides an age when children can be left alone. However, guidelines have been developed by the Department of Human Services and are used by the county social services agencies in North Dakota as well as the 5th Medical Group.

5.2. The ultimate responsibility for the safety, care, well-being, and behavior of dependent children remains with the parent or caregiver, whether they are present to personally supervise them or not.

5.3. Lack of supervision may also exist when the caretakers are present but physically or mentally impaired to such an extent they are unable to provide supervision.

5.4. Probable cause for physical neglect should be considered when the condition of the home is such that it is harmful or potentially harmful to the children.

5.5. Children left home alone should be able to demonstrate knowledge of where their parents or other responsible adults are, how to reach them, and the length of time caregivers will be absent. Children should also know emergency procedures and arrangements for emergency situations.

6. Age Guidelines.

6.1. Ages 0-4. The guideline states that all children under age 4 years be in view of their caregiver at all times while outside of the home. Use of video recording devices do not meet the intent of "in view." Inside the home, the caregiver should be available and able to respond to the child to provide immediate care and protection from harm. Children of this age should not be left in vehicles unless they are in proper restraints (unable to put the vehicles in gear) and in direct view of the caregiver at all times. Use of video recording devices do not meet the intent of "in view."

6.2. Ages 4-17.

6.2.1. Children 8 years and under should be supervised at all times with a caregiver available. An 8 year old should not be left in charge of other children.

6.2.2. Children who are 9 years old should not be left unsupervised for periods greater than two hours during the daytime. A child of this age should not be unsupervised at night and should not supervise other children.

6.2.3. Children who are 10 and 11 years old may be left alone for longer periods of time but not be left alone overnight or during sleeping hours. Children this age should not be responsible for younger children.

6.2.4. Children who are the age of 12 years and older may be permitted to act as baby-sitters. It is recommended that they successfully complete an approved child care training course.

6.2.4.1. Caution is advised on the number of children left in care, length of time for caregiving responsibility, factors regarding special needs of children left in care and resources available to the child providing care.

6.2.5. Children under 15 years of age should be attended overnight. Caution should be taken in leaving 15-17 year olds alone overnight. Extended absences of caregivers (such as over a weekend) are not recommended.

BRADLEY L. COCHRAN, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFPD 31-1, *Integrated Defense,* 21 June 2018

AFI 33-360, *Publications and Forms Management,* 1 December 2015

Air Force Manual (AFMAN) 33-363, *Management of Records,* 1 March 2008

Prescribed Forms

None

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*